GEN 1.6 SUMMARY OF NATIONAL REGULATIONS AND INTERNATIONAL AGREEMENTS/CONVENTIONS

The following is a list of civil aviation legislation, air navigation regulations, e.t.c., in force in the Republic of South Africa. It is essential that persons engaged in air operations in this territory be acquainted with the relevant regulations. Copies of the documents can be obtained from:

Government Printer
Bosman Street
Pretoria
(Private Bag X85, Pretoria 0001); or

The South African Civil Aviation Authority (SACAA) website at www.caa.co.za

ACTS	
TITLE	**CONTENTS**
Carriage by Air Act, 1946 (Act 17 of 1946)	Act to give effect to a Convention for the unification of certain rules relating to international carriage by air; to make provision for applying the rules contained in the said Convention, subject to exceptions, adoptions and modifications, to carriage by air which is not international carriage within the meaning of the Convention; and for matters incidental thereto.
Civil Aviation Act, 2009 (Act 13 of 2009)	Act to repeal, consolidate and amend the aviation laws giving effect to certain International Aviation Convention and to provide for control and regulation of aviation in the Republic. To establish a SACAA and an Independent Aviation Safety Investigation Board. To give effect to certain International Conventions and to provide for effective control of safety and security of aircraft, airports, e.t.c.
Air Services Licensing Act, 1990 (Act 115 of 1990)	Act to provide for the establishment of an Air Service Licensing Council; for the licensing and control of domestic air services; and for matters connected therewith.
Airports Company Act, 1993 (Act 44 of 1993)	Act to provide for the establishment of a public company and the transfer of the States shares in the company; to regulate certain activities at the company airports; and to provide for matters connected therewith.
Air Traffic and Navigation Services Company Act, 1993 (Act 45 of 1993)	Act to provide for the transfer of certain assets and functions of the State to a public company to be established and for matters connected therewith.
Convention on the International Recognition of Rights in Aircraft Act, 1993 (Act 59 of 1993)	Act to provide for the application in the Republic of the Convention on the International Recognition of Rights to make special provision for the hypothecation of aircraft and shares in aircraft; and to provide for matters connected therewith.

ACTS	
TITLE	**CONTENTS**
International Air Services Act, 1993 (Act 60 of 1993)	Act to provide for the establishment of an International Air Services Council; for the regulation and control of international air services; and for matters connected therewith.
South African Civil Aviation Authority Levies Act, 1998 (Act 41 of 1998)	Act to provide for the imposition of levies by the South African Civil Aviation Authority; and to provide for matters connected therewith.
Convention on International interests in mobile equipment Act, 2007 (Act 4 of 2007)	Act to enact the convention on International interest in Mobile Equipment and the protocol to the Convention on International Interests in Mobile Equipment on matters specific to aircraft equipment into law.

REGULATIONS	
TITLE	**CONTENTS**
Domestic Air Services Regulations, 1991	Definitions, classes of air services, types of air services, categories of aircraft, insurance, manner and form of application for a licence, requirements for the operation of an air service in a safe and reliable manner. Manner and form of application for an operating certificate, contents of notices of application, operations manual, Form of temporary licence, form of licence, form of operating licence, form of surrender of licence, form of summons, manner and form of notification. Contents of representations, submissions of statistical information, register of licences, register of operating certificates, fees, passenger air transport tickets, airway bills, passenger lists, inspections.
International Air Services Regulations, 1994.	Definitions, classes of international air services, types of international air services, categories of aircraft, insurance, application for a licence. Requirements in respect of aircraft, other than South African aircraft, concerning application for exemption. Contents of notice of issuing or amendment of licence, application for permit, requirements in respect of international air service concerning application for permit or amendment thereof. Tour operators permit, period of validity, period of validity of permit, application for operating certificate, contents of notice of application for licence or amendment thereof. Contents of notice or issuing or amendment of licence, contents of notice of application for permit of amendment thereof. Contents of notice of issuing or amendment of permit. Operations manual, form of temporary licence, form of licence, form of permit, form of operating certificate, form of summons. Manner and form of notification, contents of representations, furnishing of statistical information.

REGULATIONS	
TITLE	**CONTENTS**
Civil Aviation Regulations, 2011.	Definitions and Abbreviations, Procedures for Making Regulations and Technical Standards, Granting Exemptions and Notifying Differences, Aviation Accidents and Incidents, Powers and Duties of Authorised Officers, Inspectors and Authorised Persons, Certification Procedures for Products and Parts, Airworthiness: Non-type Certificated Aircraft, Engine Emission Certification, Noise Certification, General Maintenance Rules, Maintenance Rules - Non-type Certificated Aircraft, Registration and Marking, Leasing of Aircraft, Flight Simulator Training Devices, Pilot Licensing, National Pilot Licensing, Flight Engineer Licensing, Cabin Crew Licensing, Air Traffic Service Personnel Licensing, Aircraft Maintenance Engineer Licensing, Medical Certification, Glider Pilot Licence, Free Balloon Pilot Licence, General Aviation and Operating Flight Rules, Conveyance of Dangerous Goods, Corporate Operations, Operation of Non-type Certificated Aircraft, Commercial Operation of Non-type Certificated Aircraft, Operation of Parachutes and Drop Zones, Air Cargo Security, Aviation Security Training Organisations, Aviation Security Screener Certification, Aviation Security, Aircraft Passenger Identification, Aviation Pandemic Preparedness Plan, Air Transport Operations-Carriage on Aeroplanes of more than 19 Passengers or Cargo, Commercial helicopter operations: passengers, cargo and mail, Helicopter Aerial Work and Certain Other Air Service Operations, Foreign air operations, Helicopter External-Load Operations, Air Transport Operations - Carriage of less than 20 Passengers or Cargo, Air Transport Operations -Commercial Operations of Free Balloons, Agricultural Operations, Air Ambulance Operations, Aerodromes and Heliports, Safety Management System, Aviation Training Organisations, Aircraft Maintenance Organisations, Design Organisations for Products, Parts and Appliances, Manufacturing Organisations, Aviation Recreation Organisations, Aeronautical Telecommunication Service Providers (Electronic Services Organisations), Airspace and Air Traffic Services, Flight Procedure Design, Meteorological Information Services, Aeronautical Information Services, Allocation of Radio Telephony (RTF) Call Signs, 3-Letter Aircraft Designators and Location Indicators, Instrument Flight Procedures and ICAO Aeronautical Charts, Enforcement, Fees and Charges, Administration
The Mortgaging of Aircraft Regulations, 1997	Definitions, deed of mortgage, discharge of mortgage, declaration of transmission of rights in mortgage, certificate of mortgage, register of aircraft mortgages, fees, powers of attorney and completion of documents, short title and commencement.

DETERMINATIONS	
South African Civil Aviation Authority Levies Act, 1998.	Determination to impose a fuel levy on the sale of aviation fuel.

TITLE	CONTENTS
Airport Slot Coordination Regulations, 2012	Definitions, Designation of coordinated airports, Designation of schedules facilitated airports, Withdrawal of designation of a coordinated or a schedules facilitated airport, Relaxation of the designation of an airport, Temporary designation of an airport, Coordinated airports and special events, Appointment of the coordinator, Functions of the coordinator, The schedules facilitation function, Directives, Prohibition on acting as a coordinator or schedules facilitator, Appointment of the Slot Coordination Committee of South Africa, Removal of members of the committee, Functions of the committee, Meetings of the committee, Sub-committees, The determination of coordination parameters, Prohibition on using a coordinated airport without a slot, Requests for the allocation of slots, Preferences in the allocation of slots, Historic slots, Slot requests submitted after the initial submission deadline, Waiting list, Allocation of slots in respect of a designated period, Rules and guidelines on slot allocation, Provision of information on slot allocation The nature of slots, Other conditions of use, Changes to ad hoc slots, Types of misuse of slots, Misuse of slots, Publication of penalty, The withdrawal of slots, Provision of information to the coordinator, Exchange of information, Exclusion of liability, Short title and commencement.